

Diversion Investigation Standard Operating Procedure

SOP Number: DIVERS-INV-2024-005

Effective Date: February 1, 2024

Last Revised: September 2024

Scope: Diversion Support Team and Management - Confidential

Purpose

This SOP establishes the standardized investigation process for suspected medication diversion incidents, ensuring thorough, objective analysis while maintaining confidentiality and protecting employee rights. The investigation aims to determine whether diversion has occurred, identify factors contributing to risk, and recommend corrective action.

Investigation Phases

Phase 1: Report Receipt and Initial Assessment (Days 1-2)

1. **Initiation:** Diversion Support Team receives report from pharmacy, nursing management, or audit system alert
2. **Triage:** Classify severity:
 - High: CII/CIII loss, multiple red flags, known substance abuse history
 - Medium: Pattern anomalies, single concerning transaction, unwitnessed waste
 - Low: Isolated transaction, benign explanation likely
3. **Documentation:** Create investigation case record with date, reporter, affected employee, and preliminary facts
4. **Confidentiality Notice:** Notify all involved parties of confidentiality requirements and investigation protocols

Phase 2: Data Collection and Analysis (Days 3-7)

1. **Omniceil Records:** Pull complete medication activity for subject employee for 60-90 days prior
 - Dispense transactions
 - Waste and return transactions
 - Administration patterns
 - Witness documentation
2. **Epic Clinical Records:** Obtain corresponding patient records and clinical orders to match against medications dispensed
3. **Peer Comparison:** Extract medication activity for peer exemplar cohort (same role, unit, shift) for same period to establish baseline
4. **Anomaly Analysis:** Compare subject vs peers on:
 - Waste rate and CII waste rate
 - Null transactions (dispense without administration)
 - Pain score correlation with opioid administration
 - Off-shift and out-of-department activity

Phase 3: Interview and Context Gathering (Days 5-10)

Important: Employee has the right to union representation and legal counsel during interviews. Coordinate with HR and legal before scheduling.

1. **Immediate Supervisor Interview:** Gather contextual information about employee performance, work

- patterns, any observed behavioral changes
- 2. **Peer Interviews (Optional):** If appropriate, brief interviews with co-workers who witnessed activity or can provide context
- 3. **Subject Employee Interview:** Conduct only if warranted; allow representation; ask factual questions about specific transactions, not leading questions about suspected diversion

Phase 4: Findings and Recommendations (Days 8-12)

1. **Assessment:** Determine level of concern:
 - No substantial evidence of diversion
 - Anomalies present; requires process improvement or retraining
 - Probable diversion; recommend disciplinary action and possible law enforcement referral
 - Confirmed diversion; immediate referral to law enforcement and professional licensing
2. **Corrective Actions:** Recommend interventions:
 - Retraining on medication safety protocols
 - Supervised work period
 - Suspension of controlled substance access
 - Termination (for confirmed diversion)
3. **System Improvements:** Identify any process or system gaps that enabled anomalies (e.g., inadequate witnessing, poor audit frequency)

Phase 5: Documentation and Reporting (Days 12-15)

1. **Investigation Report:** Comprehensive written report including findings, methodology, evidence summary, and recommendations
2. **Confidentiality:** Report filed in restricted access location; shared only with leadership, HR, legal, and as required by law
3. **External Reporting:** If law enforcement or DEA referral warranted, coordinate with legal and compliance
4. **Professional Board Notification:** If confirmed diversion and license suspension warranted, notify state nursing board per regulatory requirements

Investigation Standards

- All investigations conducted objectively and without bias
- Presumption of innocence until evidence demonstrates otherwise
- Documentation of all evidence and methodology
- Confidentiality maintained throughout and after investigation
- Legal review of any disciplinary actions or external reporting

SOP Approved By: Chief Medical Officer, Chief Nursing Officer, Legal Counsel, HR Director

This is a synthetic sample document created for training and demonstration purposes.